

7. S-CV-0051033 Villacana, Ferman Ochoa v. Rua & Son Mechanical

Final Account

On September 30, 2025, the court granted preliminary approval of the class action and PAGA settlement. On March 10, 2026, the court granted final approval of the class action and PAGA settlement. The court issued a final judgment on April 3, 2026, which set this hearing for a final accounting.

The court has carefully reviewed the declaration of Makenna Snow filed June 18, 2026, together with the entire court file. The final accounting is approved. No further hearings are scheduled.

8. S-CV-0051202 Khachadourian, Gilbert Jr. v. Cook, Richard Noah

Cook defendants' motion for protective order

The Cook defendants' motion for protective order is continued to **August 4, 2026, at 8:30 a.m. in Department 32.**

9. S-CV-0052372 Baddawi, Samira vs. Mi Pueblito Taqueria et al

Defendants' Joint Motion to Compel Neuropsychological Examination of Plaintiff

Defendants Mi Pueblito Taqueria, Lupe Ruiz Jr., and Restaurant Depot, LLC, move to compel a neuropsychological examination of plaintiff.

Plaintiff's objections to the declaration of Dr. Kimberly Miller are overruled. Plaintiff's procedural objections to the form of the motion and sufficiency of notice are overruled. Defendants are admonished for their failure to comply with an order of the court and failure to provide proper notice. However, as plaintiff has filed a substantive opposition on the merits and does not demonstrate prejudice, any notice issue is waived, and the court will reach the merits.

Plaintiff alleges traumatic brain injury and post-concussive cognitive symptoms arising an October 9, 2023 incident, after being struck by a U-boat cart at defendants' restaurant. (Pl. Compl. ¶ 9; Pl. Opp'n at 2; Defs. Mot. at 1.) Defendants seek a neuropsychological examination by Dr. Kimberly Miller. (Daniels Decl., ¶¶ 2, 4; Miller Decl., ¶ 7.) On March 11, 2026, plaintiff agreed to one neuropsychological examination, with certain specified conditions. (Daniels Decl., Exh. 1.)

Defendants served a demand for neuropsychological examination of plaintiff on March 24, 2026. (Daniels Decl., Ex. 2.) In response to the demand, plaintiff raised several objections regarding the broad test menu, the prohibition on plaintiff recording the examination in its entirety, the restriction on raw data and audio access, the duration, the

reference to collateral interviews, and the reference to a cancellation fee. (Daniels Decl., Exhs. 7-8.) This motion followed.

Defendants' motion is granted in part.

Preliminarily, plaintiff does not object to the examination in principle but does object to certain conditions of the examination as set forth in the demand. Plaintiff requests that if the court grants leave for the examination to occur, it modify the conditions which defendants seek to impose, in line with plaintiff's objections.

Plaintiff's request that the court narrow the list of tests identified in the demand and exclude certain identified tests at the outset is denied. Defendants provide the declaration of Dr. Miller, who states that the demand identifies potential tests which may be administered based on a determination made at the time of the examination, and informed by the results of other testing during the examination. Plaintiff offers no contrary evidence which establishes the inappropriateness of this approach, or the identified tests themselves.

Plaintiff's request that plaintiff be permitted to audio record the entirety of the examination is granted. Code of Civil Procedure section 2032.530(a) plainly permits the examinee to record the examination by audio technology. As noted in *Golfland Entertainment Centers, Inc. v. Superior Court* (2003) 108 Cal.App.4th 739:

Nothing in the applicable statute suggests that the right of the examiner or examinee is limited to recording only selected parts of the examination.

Further, recording only the examinee's responses would defeat the main purposes of the audiotaping, which are to ensure that the examiner does not overstep the bounds set by the court for the mental examination, that the context of the responses can be judged for purposes of trial, that the examinee's interests are protected (especially since the examinee's counsel ordinarily will not be present), and that any evidence of abuse can be presented to the court.

(*Id.* at 750 (internal footnote and citation omitted).)

Plaintiff's request that the raw test data and audio recording of the examination be produced to plaintiff's counsel is denied. Defendants present substantial evidence that ordering production to counsel, even with a protective order, would be prejudicial and potentially impact or violate the ethical duties and obligations of third parties including Dr. Miller. Plaintiff reserves the right to seek reconsideration of this ruling in the future based on a showing of substantial need.

Plaintiff's request to cap the duration of the examination at eight hours is granted, but is exclusive of breaks and lunch, as the court cannot predict the length of any recesses. Plaintiff's request that the court bar any cancellation fee appears moot given the necessity

of this motion and the noticed examination date having already passed. The court's order does not permit a cancellation fee based on the demand, nor does it bar any future cancellation fees based on actions of the parties which may post-date this ruling. Finally, the court's ruling does not authorize any collateral interviews.

In summary, leave is granted for the neuropsychological examination of plaintiff subject to the parameters noted above. Counsel shall meet and confer in good faith regarding the date of the future examination.

10. S-CV-0053223 Myatt, Wayne T v. BJ's Restaurant Inc.

Moving party is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Defendant's motion to compel responses to form interrogatories, set one

Defendant moves for responses to form interrogatories, set one. Defendant notes that code-compliant responses to the subject discovery requests were served on March 6, 2026. Defendant's motion to compel responses is denied as moot. Defendant's request for monetary sanctions is denied.

Defendant's motion to compel responses to special interrogatories, set one

Defendant moves for responses to special interrogatories, set one. Defendant notes that code-compliant responses to the subject discovery requests were served on March 6, 2026. Defendant's motion to compel responses is denied as moot. Defendant's request for monetary sanctions is denied.

Defendant's motion to compel responses to demand for production of documents, set one

Defendant moves for responses to demand for production of documents, set one. Defendant notes that code-compliant responses to the subject discovery requests were served on March 6, 2026. Defendant's motion to compel responses is denied as moot. Defendant's request for monetary sanctions is denied.

Defendant's motion to compel response to request for itemization of nature and extent of damages

Defendant moves to compel a response to request for itemization of nature and extent of damages. Defendant notes that a code-compliant response to the subject discovery request was served on March 6, 2026. Defendant's motion to compel a response is denied as moot. Defendant's request for monetary sanctions is denied.